

Revised 05/01 WDNV

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK**

MARC M. MOSZKOWSKI

(Name of Plaintiff or Petitioner)

V.

DAVID L. RUMSEY, RUSTIN R. HOWARD, DEEPGULF, INC.

(Name of Defendant(s) or Respondent(s))

**MOTION TO PROCEED *IN FORMA PAUPERIS*
AND SUPPORTING AFFIRMATION**

26 -CV- 6015

I, MARC M. MOSZKOWSKI, (print or type your name) am the plaintiff/petitioner in the above-entitled case and hereby request the Court's permission to proceed *in forma pauperis*.

In support of my motion to proceed without being required to prepay fees, costs, or give security therefor, I state that because of my poverty I am unable to pay the costs of this action or to give security therefor and that I believe I am entitled to redress.

I further declare that the responses which I have made in this affirmation below are true.

1. Are you presently employed? Yes ☐ No ☒
 My Employer's Name and Address is: _____

 My Gross Monthly Wages are: \$ _____
 If you are not presently employed, state
 Your Last Date of Employment: DECEMBER 2017
 Your Gross Monthly Wages at that time: \$ 0
 Is your spouse presently employed? Yes ☐ No ☐
 My Spouse's Employer's Name and Address is: _____

 My Spouse's Gross Monthly Wages are \$ _____
2. Have you received any money from any of the following sources within the past twelve months:
 - a. Business, profession or self-employment? Yes ☐ No ☒
 If yes, state source and amount received per month \$ _____
 - b. Rent payments, interest or dividends? Yes ☐ No ☒
 If yes, state source and amount received per month \$ _____
 - c. Pensions, annuities, disability, or life insurance payments? Yes ☒ No ☐
 If yes, state source and amount received per month \$ 1,023
 - d. Gifts or inheritances? Yes ☐ No ☒
 If yes, state source and amount received per month \$ _____
 - e. Child Support? Yes ☐ No ☒
 If yes, state amount received each month \$ _____
 - f. Government Benefits (Social Security, SSI, Welfare, AFDC, Veterans, etc.)? Yes ☐ No ☒
 If yes, state source and amount received per month \$ _____
 - g. Friends, Relatives or any other source? Yes ☐ No ☒
 If yes, state source and amount received per month \$ _____
 If you have not received any money from any of the above sources, please explain how you are currently paying your expenses:

3. What is your total gross monthly income today: \$ 1,023
4. How much cash do you have on hand? \$ 0

5. How much money do you have in a **checking account(s)**? \$ 150, ALL ABOVE \$800 SEIZED BY DEFENDANT DAVID L. RUMSEY
6. How much money do you have in a **savings account(s)**? \$ 0
7. If you are an inmate of a correctional facility, state the amount of funds in your inmate account (**NOTE: prisoners must have inmate account balances certified by an authorized official of the correctional facility and must include a signed Authorization for payment of the filing fee**): _____
8. Do you own any real estate, stocks, bonds, notes, automobiles, or other valuable property (excluding ordinary household furnishings and clothing)? Yes ☒ No ☐
 If so, **describe** the property in detail and give an **estimated value** of the property: SEIZED BY DAVID L. RUMSEY, APPROXIMATELY \$200,000
 If you own property, are you paying off a **loan or mortgage** on it? Yes ☐ No ☒
 If yes where are you obtaining the money to make such payments: _____
9. If you are not an inmate, state your **total monthly household expenses**:
 Rent or mortgage \$ _____ Food \$ _____ Utilities \$ _____ All other expenses \$ _____
 If your monthly expenses exceed the amount of income you listed in # 3 above, please explain how you are paying your expenses

10. List **all** of the people who are in your household and state the amount of money each one contributes to household expenses each month: _____

11. List the persons who are dependent upon you for support, state your relationship to those persons, and indicate how much you contribute toward their support: _____

12. Have you been adjudicated bankrupt within the past ten (10) years? Yes ☐ No ☒
 If the answer is yes, please include the court and date of filing _____

I declare under penalty of perjury that the foregoing is true and correct.

Executed on 14 JANUARY 2026
 (Date)

M. Marzowski
 (Applicant's Signature)

PRISON CERTIFICATION SECTION

(Required for Prisoner Requests Only; Prisoner Requests Must Have This Section Completed By Prison Official)

I certify that the movant has the sum of \$ _____ on account to his/her credit at the _____
 _____ Correctional Facility where s/he is currently confined.

I further certify that the movant has the following securities to his/her credit according to the institution's records: SEIZED BY DAVID L. RUMSEY

I further certify that the movant's average account balance was \$ _____ during the last six months.

 Signature of Authorized Officer of Institution

 Print Name of Authorized Officer of Institution

Marc Moszkowski
Le Verdos
83300 Châteaudouble
France
email: mmm@deepgulf.net
Phone: (251) 300 4820 (U.S.)

January 14, 2026

Clerk of Court
United States District Court
Western District of New York – Rochester Division
100 State Street
Rochester, NY 14614

Re: Moszkowski v. Rumsey et al., Case No. 26-cv-6015
U.S. District Court, Western District of New York

Dear Clerk of Court:

I respectfully submit the enclosed **Application to Proceed In Forma Pauperis** and **Motion for Electronic Filing Privileges** in the above-referenced matter.

Plaintiff was informed that this case was administratively closed by the Court solely for non-payment of the filing fee. Plaintiff remains willing to pay the filing fee and was prepared to assume debt on his credit card in order to do so; however, Plaintiff lacks sufficient bank funds to obtain a \$405 check or money order, and no method is available by which Plaintiff can transmit credit-card payment remotely. As a result, no available method exists by which Plaintiff can transmit the filing fee.

Plaintiff resides in rural France, where the postal service has been severely disrupted following widely reported cyberattacks on the national postal administration. Plaintiff has

not seen regular mail delivery since approximately December 22, and correspondence that the Court indicated had been sent to Plaintiff has not been received. As a result, compliance with physical mail requirements has become impossible despite diligent efforts.

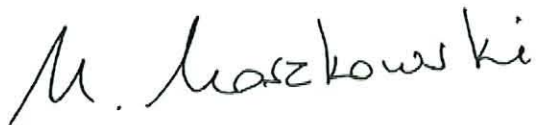
The enclosed filings are submitted promptly and in good faith to resolve the fee issue and to request authorization for electronic filing and notice, so that the case may proceed in an orderly and efficient manner.

Plaintiff respectfully requests that these documents be docketed and forwarded to the Court for consideration.

Thank you for your assistance.

Respectfully submitted,

Marc Moszkowski,
Plaintiff, Pro Se

A handwritten signature in black ink, appearing to read "M. Moszkowski". The signature is written in a cursive, flowing style.